



POLICE DEPARTMENT CITY OF NEW YORK

November 4, 2016

MEMORANDUM FOR: Police Commissioner

Re: Detective Ylka Morales
Tax Registry No. 914384
Detective Borough Brooklyn North
Disciplinary Case No. 2015-14993

Charges and Specifications:

1. Detective Ylka Morales, while assigned to Narcotics Borough Brooklyn North, on or about April 21, 2015, in the vicinity of [REDACTED], while on-duty, wrongfully used unjustified force against Person A. to wit, said Detective Morales used her foot to strike Person A.

P.G. 203-11 - USE OF FORCE - GENERAL REGULATIONS

2. Detective Ylka Morales, while assigned to Narcotics Borough Brooklyn North, on or about October 1, 2015, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that, during an official Department interview, conducted pursuant to the provisions of Patrol Guide Section 206-13, said Detective Morales wrongfully made inaccurate or misleading statements regarding the circumstances of her use of force against Person A.

P.G. 203-10, Page, Paragraph 5 - PUBLIC CONTACT - PROHIBITED
CONDUCT - GENERAL REGULATIONS

Appearances:

For the Department: Samuel Yee, Esq.
Department Advocate's Office
One Police Plaza,
New York, New York 10038

For the Respondent: James Moschella, Esq.
Karasyk & Moschella, LLP
233 Broadway-Suites 2340
New York, New York 10279

Hearing Dates:

August 24 and August 25, 2016

Decision:
Not Guilty

Trial Commissioner:
ADCT Nancy R. Ryan

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on August 24 and August 25, 2016. Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. Department called Sgt. Nicholas Colavito and Lt. Charles Perry as witnesses. Respondent called Detective Hugo Ortega and Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Not Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

It is undisputed that on the evening of April 21, 2015, Respondent, along with other members of the Narcotics Borough Brooklyn North, was conducting undercover operations in the vicinity of [REDACTED]. After an undercover officer was robbed by Person A Respondent and Detective Hugo Ortega approached the location, which is a New York City Housing Authority building. Person A was in the lobby of the building with several other people including Person B and Person C. Person A, Person B and Person C were all subsequently indicted for the robbery of the undercover.

Respondent, who was dressed in plain clothes and had not yet identified herself as a police officer, walked up to the door to the building followed by Detective Ortega, who was also

dressed in plain clothes. Respondent had a conversation through the closed door with Person A, who refused to let them in. Person A walked away from the door and Person B went to the door and opened it. Person A returned to the door area. Respondent and Detective Ortega entered the lobby. Detective Ortega approached Person A and after a struggle took him to the floor.

Respondent approached a group of three other men and secured them on the floor. Respondent then walked over to Person A and her foot made contact with his body. Person A sustained a one centimeter superficial laceration on his right eyebrow which was treated with two sutures at Brookdale Hospital. On October 1, 2015, Respondent was officially interviewed by the Department about the incident.

The areas of dispute in this case are whether Respondent's physical contact with Person A was a wrongful use of force and whether Respondent made inaccurate or misleading statements during her official Department interview regarding this incident.

Despite being subpoenaed, neither Person A, Person C, nor Person B appeared to testify at trial. The transcripts and audios of the three men's interviews were introduced into evidence. The parties stipulated that Person A had been arrested numerous times and has three separate convictions, one of which was a felony criminal sale of a controlled substance for which he was on felony probation on the date of the incident. (Tr. 9-10)

In his interviews with the IAB investigators, both of which took place on April 22, 2015, at Central Booking, Person A stated that earlier that evening he was inside a building at [REDACTED] when a woman came to the door to try to get in. He said that he asked her who she was and where she was going. There was a man with her and the woman said, "Open the fucking door." Person A said he told her he wasn't going to open the door. One of his friends in the lobby, Person B did open the door. The male entered and showed his badge.

Person A told the investigator that he then, "pulled my --I pulled both of my hands up. He punched me in the stomach, threw me on the floor. Next thing I know, I'm getting cuffed. I'm not too sure who cuffed me. And then my head is --is stomped on twice. Boom. Boom." (Dep't Ex. 6, 2-4) In his interview with Detective Tam, he described a similar sequence of events but also indicated that he got down on the ground and, "Put my hands behind my back. " (Dep't. Ex. 3, 5) He also indicated that when the officer put the cuffs on him he was trying to pick his head up. (Dep't. Ex. 6, 7) He didn't know it was a foot that hit his head until the second kick when he saw a pink sneaker hitting the ground. (Dep't. Ex. 6, 7) Person A stated that, "there was no resisting at all." (Dep't. Ex. 6, 7)

Person B was also interviewed by IAB. With regard to the interaction between the officers and Person A Person B stated that he saw the male Hispanic officer take Person A to the ground while Respondent took Person C down. He further stated that, "[t]hen as Person A's on the floor, he's being cuffed, she went over there and kicked him twice in the back of the head." (Dep't. Ex. 8, 6) Person B guessed that the kick caused a cut on Person A because after the kick, Person A started crying. (Dep't. Ex. 8, 7) When questioned further, Person B stated that Person A was not resisting and was already handcuffed when the female officer kicked him in the head. (Dep't. Ex. 8, 8)

In Person C's interview with IAB, he stated that the male officer who entered punched Person A in the stomach and the female officer kicked him two times in the head. He stated that he saw her kick Person A. (Dep't. Ex. 10, 6-8)

At trial, the Department called Sergeant Nicholas Colavito to testify. Sergeant Colavito conducted the IAB Group 54 investigation of Respondent. Through Sergeant Colavito, the Department introduced the tapes and transcripts of the interviews of Person A, Person B

and Person C; three video clips of portions of the incident (Dep't. Ex. 1); a photograph of Person A's injuries (Dep't. Ex. 4); and Person A's medical records pertaining to the injury (Dep't. Ex. 11).

On cross-examination, Sergeant Colavito testified that Person A never filed a complaint with either IAB or CCRB concerning this incident and that Person A was uncooperative with CCRB. (Tr. 43-44) The case was generated when Respondent's Sergeant notified IAB that Mr. Person A sustained an injury while in police custody. (Tr. 43) Sergeant Colavito verified that Person A had been indicted for robbing the undercover officer and simulating he had a firearm during that robbery. (Tr. 44) He testified that his investigation revealed that the undercover who had been robbed had alerted the field team about the robbery including informing them that a firearm might be involved. (Tr. 47)

Sergeant Colavito testified that his team also examined the use of force by Detective Ortega when he punched Person A and that IAB exonerated him from any allegations of excessive force because Detective Ortega perceived that Person A might have been armed with a gun at the time. (Tr. 53)

With regard to the actions of Respondent, Sergeant Colavito described his assessment of the video as Respondent making two dragging motions with her leg in the vicinity of Person A's upper body. He acknowledged that the video does not show where Respondent's foot lands and therefore does not contradict what Respondent told the investigators from his office that she made contact with the shoulder area of Person A's upper back. (Tr. 63-64) At the conclusion of his investigation, which included a review of Respondent's GO-15 statement, Sergeant Colavito recommended that the force allegations against Respondent be unsubstantiated. His lieutenant and his captain approved his recommendation. (Tr. 65, 67) An

Inspector decided the case should proceed to charges. (Tr. 74) Sergeant Colavito also testified that based on his review of Respondent's GO-15 and his review of the videos he could not determine if Respondent's statements in the GO-15 were accurate or not because the video does not show where Respondent's leg movements landed. (Tr. 70)

Lieutenant Charles Perry testified that he conducted the Department interview of Respondent. A copy of the audio and the transcript of the interview were admitted into evidence. (Dep't. Exs. 12 and 13) The interview was conducted on October 1, 2015. Lieutenant Perry testified that Respondent was not shown the video clips until after she was asked to provide a narrative of what happened. (Tr. 82) Prior to viewing the video Respondent stated in her interview that she went over to Person A, used her leg to push him down to the ground and in the process of pushing him down he struck his head which caused him an injury. After Respondent gave this narrative she was shown the video and when asked further questions about the incident, Lieutenant Perry testified that her statements about what occurred in response to the questions posed to her after seeing the video were consistent with her original narrative. (Tr. 83)

The defense called Detective Hugo Ortega and Respondent as witnesses. Detective Ortega testified that before he and Respondent entered the lobby of the building that night, the undercover had informed them that one of the men in the lobby might be armed because he had been threatened to be shot. (Tr. 89) Detective Ortega also testified that when they were talking to Person A before they had gained entry into the lobby, Person A threatened to "spray" them if they came in. According to Detective Ortega spray is a term for shooting. (Tr. 92-93) He also described Person A as being very agitated at this time and having his hand in his pocket, "pointing like he had a gun." (Tr. 93)

When the lobby door was opened, Detective Ortega entered the lobby first as he pushed Respondent out of his way and went towards Person A, since he thought he was the male with the weapon. He approached him, said "police, don't move," and grabbed him. Person A pulled away so Detective Ortega punched him in the stomach area. (Tr. 94) At the time Detective Ortega engaged with Person A, Detective Ortega testified that Respondent was on his right engaging with the four other individuals in the lobby. After he struck Person A, Person A fell to the ground and Detective Ortega drew his weapon and told him to get on the ground. Detective Ortega holstered his weapon after Person A was on the ground and he grabbed him to flip him over. He was not successful at first since Person A was putting up a struggle. (Tr. 101) At the point he is flipped over, Person A hit his head. (Tr. 95) Person A was screaming, "[F]uck you. Go fuck yourselves. I should have shot you." Detective Ortega was instructing Person A to, "Stop moving. Let me see your hands." (Tr. 96) Person A had put his hand under his body when he flipped over and Detective Ortega was trying to grab his hands to handcuff him. Detective Ortega testified that Respondent then came over to where he was trying to handcuff Person A while was still struggling with him. (Tr. 97) Detective Ortega testified that he did not specifically see what Respondent did when she came over because he was still trying to get Person A's hands from under his body. (Tr. 102) He only noticed Person A was injured after he was handcuffed and he picked him up from the ground. (Tr. 102) No weapon was ever recovered from Person A. (Tr. 113)

Respondent testified that she has been a police officer for 23 years and has been assigned to the Narcotics division for 19-and-a-half of those years. (Tr. 123) [REDACTED]

[REDACTED]

Over the course of her career she has personally made approximately 1700 arrests and participated in almost 10,000 arrests. (Tr. 123-24, 126-27) She has never been the subject of any civilian complaints before this one. She has never had any charges for misleading statements or integrity related issues, but has had a few administrative violations. (Tr. 124- 125)

On the evening of April 21, 2015, Respondent was assigned as the arresting officer for a tactical response team which dealt with shootings, gang violence, and drug transactions. (Tr. 127) Respondent, who was in plain clothes, was parked about a block away from [REDACTED] [REDACTED] when the undercover officer exited the building and told her and Detective Ortega that he was robbed by a male who pressed against his body with something that felt like a gun. (Tr. 130-31) Respondent decided that she would approach the building first so the individuals wouldn't "get spooked." (Tr. 132) When she got to the door of the lobby, she noticed numerous individuals inside and began to press apartment buttons on the doorway to pretend she lived there. (Tr. 133) Person A came over to the door and asked her what she needed. She responded that she just wanted to get in to the building. (Tr. 134) At that point Detective Ortega began to walk up to the lobby door and Person A started saying, "Who the fuck is that?" Detective Ortega motioned like he just wanted to get to the fifth floor and Person A responded by stating, "Fuck you, I'm not letting you in the fucking building. I don't know who the fuck you are." (Tr. 137) Respondent testified that Person A had his hand in his pocket and was using his hands in a threatening way. He said, "I'll spray you, bitch." Respondent testified that she interpreted this comment as meaning he was going to spray her with bullets. (Tr. 138) She then told Detective Ortega she was going to draw her gun and he told her he would go after Person A while she covered the other males in the lobby. (Tr. 138, 144)

Respondent continued that Person A, still cursing, walked away from the door and Person B then walked over and opened the lobby door. (Tr. 139) Respondent then saw Person A quickly coming back to the door in a "combative charging motion" towards her and Detective Ortega. (Tr. 143) As Respondent entered the lobby she took her gun out and walked towards the rear of the lobby with her weapon pointed down, said, "Police don't move," and ordered everyone to the ground. (Tr. 145) Respondent could hear a commotion between Person A and Detective Ortega. She believed that Person A might have a firearm since he met the description given by the undercover and also due to the way he spoke to her, the movements he made with his hand in his pocket and his threat to spray her. (Tr. 148) She described the atmosphere at the time as, "Extremely tense. Extremely dangerous situation." (Tr. 146) She testified that she took her firearm out, "[b]ecause there was the threat to my life ... as we were outnumbered in that lobby." (Tr. 176)

When two of the individuals she ordered to the ground did not move, she physically grabbed them and pushed them down to the ground. When she had the three individuals covered, she noticed that backup had arrived. She could see, "from the corner of her eye," a little bit of the struggle between Detective Ortega and Person A and she heard Detective Ortega telling Person A to keep still and give him his hands. She heard Person A yelling and screaming and saying, "Fuck...Get off of me" (Tr. 148-49) Respondent testified that she asked the backup officers to cover one of the subjects and she went over to help Detective Ortega. (Tr. 149) As she walked towards Detective Ortega she used her foot to shove the back of the male who initially failed to respond to her command to get down. (Tr. 150-51) She testified that she used her foot at this point since her, "weapon was out and so I'm directing him with my foot so that he's also aware as I am giving him commands that my weapon is out, but I'm telling him

don't move...so I'm tapping him and I'm kind of nudging him and shoving him with my foot to direct him." (Tr. 151) She testified further that it would have been dangerous to bend down and use her hands on the suspect at that time since her weapon was out and the suspect could disarm an officer if they were within reach of the gun. (Tr. 151)

As Respondent proceeded towards Detective Ortega she testified that she could see the situation a little bit clearer and saw that Person A was "clenching" and he was not giving Detective Ortega his arm. (Tr. 153) She testified that she saw that both Person A and Detective Ortega were on the ground and there was a struggle going on. Person A and Detective Ortega were shifting around. (Tr. 181-82) She quickly moved over and then, "used my foot there as well, in a shoving motion, and I shoved Person A on his upper back." (Tr. 153) She added that, "It's a one second split decision I have to make and I'm losing seconds if I were to holster [my weapon], so I still have my weapon out, so I decided to use my foot to direct Person A to stop moving." She testified she did not kick Person A, nor was it her intention to kick him. (Tr. 153) She testified that her intention was to prevent Person A from escaping or giving Detective Ortega a hard time handcuffing him. (Tr. 156) Respondent further testified that right after she shoved him two times, Person A stopped moving and gave his hands to Detective Ortega. (Tr. 154, 184) When asked if she knew how Person A sustained an injury, Respondent testified that, "As I shoved him on his shoulder, being that he was still a little, he was on the ground, but he was still a little bit up, like he was trying to shift a little bit, his head was a little tilted up and that ricocheted and it kind of, as I hit his shoulder his head hit the floor." (Tr. 154-55) Respondent acknowledged on cross-examination that Detective Ortega had not called for her help with Person A. (Tr. 185)

Respondent also testified that she told IAB in her official Department interview that Person A sustained the injury when she shoved him back to the ground with her foot even before she was shown the video. (Tr. 155) She believes she testified accurately during her IAB interview and if she were to go back and look at her IAB statement now, she still wouldn't change any part of her statement. (Tr. 157)

There are three video clips which capture portions of the encounter between the police and Person A and the other males in the lobby. Video clip two, which is a view from a location inside the lobby facing the lobby entrance door, while supporting Respondent's description of how she entered the lobby and her actions immediately upon entering the lobby, do not show any of her physical interactions with any of the males in the lobby. Video clip one, which is a view from a point outside the building facing the lobby door also supports Respondent's and Detective Ortega's descriptions of their action approaching and then entering the lobby. At approximately 00:54, Detective Ortega can be seen approaching Person A, and at approximately 00:58 on the video, Respondent can be seen approaching the males in the rear of the lobby. At approximately 1:00 another officer standing by the door blocks the view of Person A. At approximately 1:10 it appears that Detective Ortega is attempting to turn Person A over while he is on the ground and at approximately 1:11 it appears that both Person A and Detective Ortega are on the ground. At approximately 1:15, the view of Person A is again obstructed by the officer at the door. There is no clear view of Respondent's interactions with Person A while he is on the ground on this clip. There is a view of Respondent moving into the area behind the column at approximately 1:21. She is visible again at approximately 1:28. At this point Detective Ortega still seems to be kneeling over Person A.

Video clip three is a view from inside the lobby facing a column and a wall of mailboxes. At approximately 00:43 Person A and Detective Ortega move behind the column and are not visible for a time. At approximately 00:50, Respondent can be seen interacting with one male and pushing him down while Detective Ortega can now be seen standing near the column pointing a gun towards the males Respondent is engaging with. Person A, whose body is mostly obscured by the column at this point, can be seen lying on the floor on his side with one arm outstretched on the floor. At approximately 00:55-56, Detective Ortega can be seen pushing Person A, who is still not lying down facing the ground, towards the column. Person A's one arm is still visible and is still outstretched. Respondent at this point is in the area where the other males are and one of those males is still sitting up while the others are lying on the floor. At approximately 1:04-05, Respondent can be seen putting the man, who was previously sitting, onto the floor and then pushing him down with several taps of her foot to his back. Person A and Detective Ortega are not visible at this point except for the one foot of Person A which appears to be still and is extending out behind the column. At approximately 1:06-07, Respondent walks over to the area where Detective Ortega had last been visible and where Person A is not visible except for the one foot. At 1:09-10, Respondent can be seen moving her foot in the direction of where Person A and Detective Ortega were. No contact is seen between Respondent and Person A. Respondent then moves back over where the other males are and heads towards the door area.

Respondent is charged with wrongfully using unjustified force against Person A in using her foot to strike him. She is also charged with then making inaccurate or misleading statements regarding the circumstances of her use of force against Person A during her official Department interview.

With regard to the use of force, the Patrol Guide procedure in place at the time of this incident, Patrol Guide Section 203-11, sets forth the standard to be followed when force is necessary to achieve legitimate police goals. It mandates that members of service "at the scene of a police incident" use the "minimum necessary force," and cautions that "excessive force will not be tolerated." In this case, Respondent has acknowledged in both her initial official Department official interview and at trial, that she did in fact make contact with her foot to Person A's body. She has also admitted in both proceedings that the cut above Person A's eye was the result of the contact with her foot, in that the contact caused him to bang his head against the floor. At issue is whether this force was justified. I find that it was.

As an initial matter, I find that both Respondent and Detective Ortega, based on their demeanor and forthcoming manner of responding to questions, testified credibly in this case. Their testimony is also supported by the video clips for the portion of the incident that can be seen on the videos. I have not credited the hearsay statements of Person B and Person C since, without the benefit of cross-examination, there is a likelihood that their statements may be unduly biased by the fact that Respondent assisted in their arrest. This tribunal also questions whether they were in a position to observe the interaction between Respondent and Person A as they were also being cuffed. It is also of note that they were in the same holding area before they were questioned by IAB, which may have allowed for collusion concerning their versions of events. These factors could not be adequately tested or assessed without cross-examination. While Person A also failed to appear to provide trial testimony, his account is also subject to question. In addition to the potential bias stemming from his arrest by Respondent, his account also was contradicted by the video. Specifically, Person A stated that he got down on the ground and put his hands behind his back when in fact his arm can

clearly be seen outstretched after he goes down to the ground. His description of having his head "stomped" also is inconsistent with the dragging motions of Respondent's foot as seen on the video.

Respondent testified that she made contact with Person A's body with her foot to assist Detective Ortega who was struggling with Person A while attempting to handcuff him. Detective Ortega testified that Person A was putting up a struggle and had to be flipped over and was not giving him his hands to be handcuffed. Both officers' testimony that Person A was resisting being handcuffed is supported by the portions of video clip three where it can be seen that Person A's arm remains outstretched in front of him even after he is lying on the ground. He also does not immediately lie on the ground face down, but rather has to be turned over by Detective Ortega. It is obvious from the fact that the arm is outstretched that Person A did not simply put his hands behind his back and wait to be handcuffed. I reject the Department Advocate's argument that because the one foot of Person A's that is visible is not moving it indicates he was not resisting. It is very conceivable that someone's legs could be still while they are still refusing to provide their hands to be handcuffed or that while the officer kneeling on top of them had secured the lower half of their body this way, the upper half could still be moving.

While the video does not allow a definitive answer as to whether Person A was fully handcuffed at the time of the foot contact, in addition to accepting the testimony of Respondent and Detective Ortega that Person A was resisting, I note that at the 1:28 mark on video clip one, as Respondent is seen walking towards the exit, it appears Detective Ortega is still on the ground kneeling over Person A's back. This is an additional indication, in conjunction with

Detective Ortega's and Respondent's testimony, that Person A had not been fully secured when Respondent's foot made contact with him.

It is also important to note that Respondent used her foot to push another male down to the ground to secure him to be handcuffed before she approached Person A. In an explanation that makes sense, Respondent clarified that this was a tactic she employed since she had her weapon drawn and did not want to put herself down close to the ground in a position where the males could grab her drawn weapon. When she uses her foot in this manner against the first male it is quite clear that she is not kicking him. Instead, she is using her foot in a controlled manner. There is nothing on the video to suggest she is acting out of anger or attempting to hurt this male in any way. In fact she is not charged with an unlawful use of force for this action. It is only a matter of seconds later when, as she testified, she used her foot again on Person A. She does not rush over to Person A, but again can be seen moving in a controlled and deliberate manner, as opposed to an angry rush toward him. As Respondent still has her gun drawn at the point she approaches Person A, it makes sense that merely seconds later she would employ the same tactic she used on the first male to help secure him for Detective Ortega without getting close enough for Person A to grab her weapon.

As a final point, while the actual contact between Respondent's foot and Person A are not visible on the video clips, the movements of Respondent's foot can perhaps best be described as they were by the IAB investigator assigned to the case. He called them two dragging motions. These motions are consistent with Respondent's description of using her foot to make contact with Person A's shoulder and, as noted above, are not consistent with Person A's description of getting his head "stomped" on.

I therefore find that Respondent is Not Guilty of Specification 1.

Having found that Respondent is Not Guilty of an unjustified use of force against Person A the next question is whether she wrongfully misled IAB in her official Department interview. The Department Advocate, while citing to a Bill of Particulars he filed in the case, which in essence identified as inaccurate or misleading the entirety of Respondent's description of her actions during the incident, argued with more specificity that Respondent made misleading statements in her official interview when, 1) she described Person A's legs as moving; 2) she described using her foot on Person A's shoulder area as opposed to his head; and, 3) she doesn't indicate she used her foot twice.

In reviewing false statement charges the question to be determined is whether a respondent made material deviations from the actual incident or intentionally misrepresented the actual events in question. *See Dep't of Corr. V. Rodriguez*, OATH Index No. 277/06 (Mar. 29, 2006) at 11, 15-16. For the reasons set out below I find that the Department has not proven by a preponderance of the evidence that this Respondent made either material deviations from the actual incident or intentionally misrepresented the actual events in question during her official Department interview. To the contrary, when Respondent was questioned about what happened over five months after the incident and without benefit of reviewing the videos of the incident before initially being asked about it, she gave a remarkably accurate account as was borne out by the video for those portions of the incident which were captured by the video. Even after being shown the video she did not change anything about what she originally told the investigators.

Respondent's actual initial Department statement concerning her interaction with Person A is as follows:

"I hear him [Person A]. He's still yelling and screaming what did I do? I didn't do -- I didn't do shit. I see his legs moving. His whole body's turning and -- I then, at that point, take my -- take my leg and I shove his -- like his shoulder part downward and tell him don't move. And at that point his head -- his head was a little to the side and I

believe -- and his head ended up hitting -- bounced off the -- the -- you know, ground -- the pavement -- the floor. And he received a cut to his eye at that point. " (Dep't Ex. 13, 13)

With regard to the Department position that Respondent gave a false statement concerning where her foot made contact with Person A, there is nothing in the video that proves that Respondent was not accurate in her description of where her foot made contact with Person A. I reject the Department Advocate's argument that if Respondent had made contact with his shoulder then his head would have been visible on the video. There are positions Person A could have been in behind the pillar, such as if his head was angled towards the pillar, where Respondent could have made contact with one shoulder and his head would not have been visible. As I indicated previously I have credited Respondent's testimony that she made contact with Person A's shoulder or upper back area, and I find nothing in the video to prove by a preponderance of the evidence that this account of where her foot landed is either false or misleading.

With regard to her description of the movement of Person A's legs, again I note that she is giving this account without benefit of seeing the video, at a point over five months after the incident. Respondent is specifically questioned about this aspect of her account during her official statement after she is shown the video. Respondent indicates that at a point described by the investigator as around 00:58 in the video [clip 3], it appeared to her, from her vantage point, that Person A and Detective Ortega were struggling. The video clip does in fact show Person A right before that time frame still not lying motionless on his stomach, and as he had to be turned over by Detective Ortega, his legs would in fact be moving.

Additionally, it is important to note that I do not deem the movement or non-movement of Person A's legs to be a material fact Whether or not Person A was resisting is the

material issue. As indicated above, I have credited Respondent's testimony, which was supported by Detective Ortega's testimony, that her use of force was necessary since Person A was still resisting being handcuffed at the time she made contact. Again, as I noted above, even if Person A's legs were not moving at the actual point of her contact, it does not mean that he had ceased resisting being handcuffed as was described by both Respondent and Detective Ortega.

I also reject the Department's argument that Respondent gave a false and misleading statement because she didn't specifically say her foot made contact with Person A twice. She consistently stated in the interview that she used her foot to shove Person A down. She was not asked how many times she makes contact with Person A, nor does she ever say she just made contact one time. Saying that she used her foot to shove him down is therefore neither inaccurate nor misleading.

As the Department has failed to prove by a preponderance of the evidence that Respondent intentionally made material misleading or inaccurate statements in her official Department interview, I find her Not Guilty of Specification 2.

APPROVED

JAN 24 2017

James P. O'Neill
JAMES P. O'NEILL
POLICE COMMISSIONER

Respectfully submitted,

Nancy R. Ryan

Nancy R. Ryan
Assistant Deputy Commissioner Trials